

HOUSE BILL 2232

By Dixie

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to criminal history records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 32, is amended by adding the following as a new part:

40-32-201.

(a) A person may petition the court in which the person was convicted of a criminal offense to seal the person's criminal history records for the offenses listed in § 40-32-203. At the time of filing a petition, the person must pay a fee of five hundred dollars (\$500) to be used by the clerk to offset the cost of sealing records.

(b) Upon determining that the person is eligible under § 40-32-202 to have the person's criminal history records sealed, the court shall enter an order sealing the records from all public records requests. The sealed records may continue to be used for the following purposes:

(1) By the Tennessee bureau of investigation or the federal bureau of investigation, in determining whether to approve a firearms transaction, pursuant to § 39-17-1316, or a handgun carry permit application, pursuant to § 39-17-1351 or § 39-17-1366;

(2) By the department of health in maintaining a registry of persons who have abused, neglected, or misappropriated the property of vulnerable individuals, pursuant to title 68, chapter 11, part 10; and

(3) By the Tennessee peace officer standards and training commission in determining, pursuant to § 38-8-104(g), whether a person has any recorded

convictions in this state and meets the minimum qualifications for law enforcement officers as provided in § 38-8-106.

40-32-202.

A person is an eligible petitioner under this part if the person:

(1) Has fulfilled the requirements of the sentence imposed by the court in which the person was convicted of the offense, including:

(A) Payment of all fines, restitution, court costs, and other assessments;

(B) Completion of any term of imprisonment or probation;

(C) Meeting all conditions of supervised or unsupervised release;

and

(D) If so required by the conditions of the sentence imposed, remaining free from dependency on or abuse of alcohol or a controlled substance or other prohibited substance for a period of no less than one (1) year;

(2) Is not subject to any pending criminal charges; and

(3) Has not been convicted of a criminal offense for at least five (5) years, beginning after the completion of any term of imprisonment, supervised or unsupervised release, or probation.

40-32-203.

(a) Except as provided in subsection (b), criminal history records related to a conviction for any misdemeanor offense and any offense committed prior to November 1, 1989, that would constitute a misdemeanor offense if committed under current law are eligible to be sealed under this part.

(b) The following offenses are ineligible to be sealed under this part:

- (1) Domestic assault, under § 39-13-111; and
- (2) Driving under the influence, under § 55-10-401.

40-32-204.

If, after the person's records have been sealed, the person is charged with a new offense other than a moving or nonmoving traffic offense, then the court that ordered the records to be sealed shall rescind the order pending the disposition of the new charge. If the person is convicted of the new offense, then the court shall order the records to be unsealed. If the new charges result in any other final disposition, then the court shall reinstate the order sealing the person's records.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.